

ATTORNEY OR PARTY WITHOUT ATTORNEY: _____ STATE BAR NO.: _____ NAME: _____ FIRM NAME: _____ STREET ADDRESS: _____ CITY: _____ STATE: _____ ZIP CODE: _____ TELEPHONE NO.: _____ FAX NO.: _____ E-MAIL ADDRESS: _____ ATTORNEY FOR (name): _____	<i>FOR COURT USE ONLY</i>	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF _____ STREET ADDRESS: _____ MAILING ADDRESS: _____ CITY AND ZIP CODE: _____ BRANCH NAME: _____		
GUARDIANSHIP OF THE PERSON ☐ AND ESTATE OF _____ (name): _____ ☐ MINOR ☐ MINORS		
PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS		CASE NUMBER: _____

Petitioner (name each):

alleges:

1. Petitioner is (check all that apply to a single petitioner or to more than one petitioner):
 - a. ☐ The proposed guardian of the person or the person and estate of the minor named in item 2. This petition is filed concurrently with the petition for my appointment as guardian.
 - b. ☐ The guardian of the person or the person and estate of the minor named in item 2. The order appointing me was filed in this case on (date): _____. Letters of Guardianship were issued on (date): _____.
 - c. ☐ The minor named in item 2. I am at least 12 years of age. I was born on (date): _____.
If there are two or more wards or proposed wards in this case, I am asking the court for an order only for myself.
 - d. ☐ The *guardian ad litem* for the minor named in item 2. A certified or conformed copy of the *Order Appointing Guardian Ad Litem—Probate* (form GC-101) is attached to this petition as Attachment 1d.
 - e. ☐ An adult relative (specify relationship): _____ or other person on behalf of the minor named in item 2.
2. (Name of Minor):* _____
is a national of (country): _____.
3. This court has jurisdiction under California law “to make judicial determinations about the custody and care of juveniles” within the meaning of section 101(a)(27)(J) of the Immigration and Nationality Act (INA), 8 U.S.C. § 1101(a)(27)(J), and 8 C.F.R. § 204.11(a). The minor named in item 2 is under this court’s jurisdiction and will remain under that jurisdiction if the court appoints (or has appointed) a guardian of his or her person in this proceeding.
4. If a guardian of the person of the minor named in item 2 has been appointed and has qualified in this proceeding, the minor is placed under the custody of an individual or entity appointed by a California state or juvenile court located in the United States within the meaning of INA section 101(a)(27)(J), 8 U.S.C. § 1101(a)(27)(J).

*** (In a guardianship case involving more than one ward, prepare a separate petition for each ward for whom you are seeking SIJ findings.)**

GUARDIANSHIP OF THE PERSON ☐ AND ESTATE OF (name): ☐ MINOR ☐ MINORS	CASE NUMBER:
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Requested Findings

5. Reunification of the minor named in item 2 with ☐ one parent ☐ both parents is not viable under California law because of *(check all that apply)*:
- ☐ abuse
- ☐ neglect
- ☐ abandonment
- ☐ another legal basis *(specify)*:

Facts in support of this finding are stated below *(for each parent with whom reunification is not viable, state the reasons that apply to that parent)*:

☐ Additional facts are stated on Attachment 5 to this petition. *(You may use Attachment to Judicial Council form [\(form MC-025\)](#) for this purpose.)*

GUARDIANSHIP OF THE PERSON ☐ AND ESTATE OF (name): ☐ MINOR ☐ MINORS	CASE NUMBER:
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6. It is not in the best interest of the minor named in item 2 to be returned to the minor's or the parent's previous country of nationality or country of last habitual residence. (*specify country or countries*):

Facts in support of this finding are stated below:

☐ Additional facts are stated on next page.

GUARDIANSHIP OF THE PERSON ☐ AND ESTATE OF (name): ☐ MINOR ☐ MINORS	CASE NUMBER:
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6. (continued):

☐ Additional facts are stated on Attachment 6 to this petition. (You may use Attachment to Judicial Council form [\(form MC-025\)](#) for this purpose.)

7. All attachments to this form are incorporated by this reference as though placed here in this form. There are _____pages attached.

Date:

_____		_____
(TYPE OR PRINT NAME OF ATTORNEY)		(SIGNATURE OF ATTORNEY*)

* All petitioners must also sign (Prob. Code, § 1020).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

_____		_____
(TYPE OR PRINT NAME)		(SIGNATURE OF PETITIONER)
_____		_____
(TYPE OR PRINT NAME)		(SIGNATURE OF PETITIONER)
_____		_____
(TYPE OR PRINT NAME)		(SIGNATURE OF PETITIONER)

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